

JORDAN 2019 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

The Hashemite Kingdom of Jordan is a constitutional monarchy ruled by King Abdullah II bin Hussein. The constitution grants the king ultimate executive and legislative authority. The multiparty parliament consists of the 65-member Senate (Majlis al-Ayan) appointed by the king and a 130-member popularly elected House of Representatives (Majlis al-Nuwwab). Elections for the House of Representatives occur approximately every four years and last took place in 2016. International observers deemed the elections organized, inclusive, credible, and technically well run.

The Public Security Directorate (PSD) has responsibility for law enforcement and reports to the Ministry of Interior. The PSD, General Intelligence Directorate (GID), gendarmerie, and Civil Defense Directorate share responsibility for maintaining internal security. The gendarmerie and Civil Defense Directorate report to the Ministry of Interior, while the GID reports directly to the king. The armed forces report to the Ministry of Defense and are responsible for external security, although they also have a support role for internal security. Civilian authorities maintained effective control over the security forces.

Significant human rights issues included: allegations of torture by security officials; arbitrary arrest and detention, including of activists and journalists; infringements on citizens' privacy rights; restrictions on free expression and the press, including criminalization of libel, censorship, and internet site blocking; restrictions on freedom of association and assembly; incidents of official corruption; "honor" killings of women; violence against lesbian, gay, bisexual, transgender, and intersex (LGBTI) persons; and conditions amounting to forced labor in some sectors.

Impunity remained widespread, although the government took limited, nontransparent steps to investigate, prosecute, and punish officials who committed abuses. Information on the outcomes of these actions was not publicly available for all cases.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were no reports of arbitrary or unlawful deprivation of life by security forces during the year.

In April the police court convicted officers from the PSD Criminal Investigations Division (CID) of the negligent homicide of Omar al-Nasir in 2015. The convicted officers were free on bail while both the officers and the victim's family appealed the verdict. In February the five CID officers accused of killing Ibrahim Zahran in 2018 were released as part of a broader general amnesty. During the year the country's highest court of appeals upheld the conviction of three PSD Anti-Narcotics Division (AND) officers for the 2015 manslaughter of Abdullah al-Zo'ubi.

Several nongovernmental organizations (NGOs) reported on the 2018 death of Bilal Emoush while in custody. Emoush was arrested in May 2018 by the AND and was reportedly beaten and tortured while in custody in order to extract a confession, according to multiple NGOs. He was transferred to the hospital in June 2018, where he died from his injuries. The official autopsy report listed the cause of death as internal bleeding caused by a blow to the duodenum and an ulcer in the stomach. According to one local NGO, no official investigation of police mistreatment was conducted, the police officers involved in the incident were not prosecuted, and the case was dismissed for insufficient evidence. Another NGO reported that multiple health-care workers involved in the case were under investigation for negligence.

The quasi-governmental watchdog National Center for Human Rights (NCHR) demanded that police officers accused of gross violations of human rights be tried in independent civil courts instead of police courts, which fall under the Ministry of Interior and are considered less independent, according to multiple NGOs. The PSD director issued new policy directives in 2018 regarding the treatment of those in custody, including independent reviews of their medical condition and further reviews of detention facilities. The PSD took steps to monitor detention facilities to promote compliance with detention policies.

b. Disappearance

There were no reports of disappearances by or on behalf of government authorities during the year.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution bans torture, including psychological harm, by public officials and provides penalties up to three years' imprisonment for its use, with a penalty of up to 15 years if serious injury occurs. While the law prohibits such practices, international and local NGOs continued to report incidents of torture and mistreatment in police and security detention centers. Human rights lawyers found the penal code ambiguous and supported amendments to define "torture" more clearly and strengthen sentencing guidelines. According to government officials, all reported allegations of abuse in custody were thoroughly investigated, but human rights NGOs questioned the impartiality of these investigations.

Local and international NGOs reported that the AND routinely subjected detainees to severe physical abuse. Allegations were also made against the CID, which led to criminal charges. While there was no documentation of complaints of mistreatment by the GID during the year, local NGOs said it still occurred, but citizens did not report abuse due to fear of potential reprisals.

Through October 1, the PSD Human Rights and Transparency Office received 26 allegations of harm (a lesser charge than torture that does not require a demonstration of intent) against officers. Most alleged abuse occurred in pretrial detention.

Prison and Detention Center Conditions

Conditions in the country's 17 prisons varied: old facilities had poor conditions; but new prisons met international standards. Authorities held foreigners without legal work or residency permits in the same facilities as citizens. (For information on asylum seekers and refugees, see section 2.f.).

Physical Conditions: Significant problems in older prison facilities included inadequate sanitary facilities, poor sanitation and ventilation, extreme temperatures, lack of drinking water, limited access to sunlight, and medical care only in emergencies. International NGOs and legal aid organizations identified problems including overcrowding, limited health care, inadequate legal assistance for inmates, and limited social care for the inmates and their families. Detainees reported abuse and mistreatment by guards.

According to the PSD's Human Rights and Transparency Office, the PSD received 12 cases of allegations of torture and mistreatment in prisons and rehabilitation centers.

Officials reported overcrowding at most prisons, especially the prisons in and around Amman. According to the PSD, there were approximately 20,500 inmates in detention as of November, and correctional and rehabilitation centers were at 152 percent of capacity. From May to June, several detainees undertook hunger strikes protesting detention center conditions and their arrest under the 2015 Cybercrimes Law. The detainees' families told media that prison authorities did not transfer the striking detainees to the hospital despite their deteriorating health. Some media sources, however, reported the detainees were eventually transferred to a hospital.

International and domestic NGOs reported that Islamist prisoners faced harsher prison conditions than other inmates.

According to the PSD, authorities designated some facilities to hold only pretrial detainees. The GID held some persons detained on national security charges in a separate detention facility. During the year the NCHR made an unspecified number of announced visits to the GID facility, and the GID began allowing the NCHR unsupervised meetings with prisoners. Detainees complained of solitary confinement, isolation, and prolonged pretrial detentions of up to six months. According to human rights activists, the GID held detainees in solitary confinement. Local and international NGOs received reports of mistreatment, abuse, and torture in GID detention facilities.

Although basic medical care was available in all correctional facilities, medical staff complained that correctional facilities throughout the country lacked adequate medical facilities, supplies, and staff. Staff complained that they expressed concerns about deficiencies of care, which authorities did not address. Most facilities were unable to conduct blood tests and had limited X-ray capabilities, forcing doctors to rely largely on self-reporting by patients for certain conditions. If an inmate's condition was too severe for treatment at the prison's clinic, doctors recommended transfer to a local hospital.

Conditions in the women's prisons were generally better than conditions in most of the men's prisons.

Police stations had no separate holding areas for juveniles. According to the Government Coordinator for Human Rights (GCHR), authorities held juveniles in special facilities supervised by the Ministry of Social Development.

Administration: Prosecutors exercised oversight regarding the condition of detainees. From January to July, the PSD Human Rights and Transparency Office made 163 visits to detention centers. Karamah, a team of government officials and NGOs, and the NCHR also monitored prison conditions. In some cases authorities severely restricted the access of detainees to visitors. Authorities allegedly sometimes banned family visits. Authorities sometimes did not inform the families regarding the whereabouts of detainees or waited between 24 hours and 10 days to alert families, although the PSD attempted to address this problem by implementing a new system of record keeping.

Independent Monitoring: The government permitted some local and international human rights observers and lawyers to visit prisons and conduct private interviews. The International Committee of the Red Cross (ICRC) had wide access to visit prisoners and detainees in all prisons, including facilities operated by the GID. Authorities approved some requests by local human rights observers to conduct monitoring visits independently of Karamah and the NCHR.

Improvements: The AND upgraded its temporary detention center in the al-Yasmeen neighborhood of Amman during the year to improve conditions for detainees. Authorities took steps to use alternatives to prison sentences for nonviolent offenders. During the year the Ministry of Justice processed several dozen cases for alternative sentencing under a program inaugurated in 2018.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his or her arrest or detention in court; however, the government did not always observe these prohibitions.

Arrest Procedures and Treatment of Detainees

The law provides the right to appear promptly before a judge or other judicial officer for a judicial determination of the legality of the detention. The law allows authorities to detain suspects for up to 24 hours without a warrant in all cases. It requires that police notify authorities within 24 hours of an arrest and that authorities file formal charges within 15 days of an arrest. Authorities can extend

the period to file formal charges to as long as six months for a felony and two months for a misdemeanor. According to local NGOs, prosecutors routinely requested extensions, which judges granted. The State Security Court (SSC) authorizes judicial police to arrest and keep persons in custody for seven days prior to notification while conducting criminal investigations. This authority includes arrests for alleged misdemeanors. NGOs alleged that authorities transferred suspects to the SSC to extend the legal time from 24 hours to seven days for investigation prior to notification or transferred suspects from police station to police station to extend the period for investigation. During the year the Ministry of Justice inaugurated an electronic notification system for judicial action to help lawyers remain up-to-date on their cases and reduce the pretrial detention period.

The penal code allows bail, and authorities used it in some cases. In many cases the accused remained in detention without bail during the proceedings. PSD regulations exempt persons from pretrial detention if they have no existing criminal record and the crime is not a felony. NGOs reported cases of administrative detention increased during the year.

Most detainees reported not having timely access to a lawyer. Courts appointed lawyers to represent indigent defendants charged with felonies carrying possible life sentences (often interpreted by the judiciary as 20 years) or the death penalty, although legal aid services remained minimal. At times authorities held suspects incommunicado for up to one week or placed them under house arrest. A number of human rights activists alleged that authorities held arrestees incommunicado to hide evidence of physical abuse by security forces. Courts did not offer adequate translation services for defendants who could not speak Arabic.

In October, Amnesty International reported that “virginity testing” was commonly requested by male guardians after female relatives had been detained by authorities for being “absent” from the male guardian’s home. Authorities generally complied with those requests despite medical consensus against the utility of the procedure.

Arbitrary Arrest: In cases purportedly involving state security, security forces at times arrested and detained individuals without informing them of the charges against them and either did not allow defendants to meet with their lawyers or did not permit meetings until shortly before trial.

The law allows the 12 provincial governors to detain individuals administratively as they deem necessary for investigation purposes or to protect that individual. Authorities held some individuals in prison or under house arrest without due

process and often despite a finding of not guilty in legal proceedings. Several international and national NGOs, along with the NCHR, alleged governors routinely abused the law, imprisoning individuals when there was not enough evidence to convict them, and prolonging the detention of prisoners whose sentences had been completed. According to the NCHR, the number of administrative detentions increased to 41,144 in 2018, compared with 35,906 in 2017.

Governors continued to issue thousands of administrative detention orders under a 1954 law that allows pretrial detention from three days to one year without charge or trial or any means of legal remedy.

According to a 2019 Amnesty International report, authorities routinely engaged in “protective” detention of women (a type of informal detention without trial) to deal with cases ranging from sex outside of marriage to absence from home to being the victim of sexual violence, all of which could put women at risk of so-called “honor” crimes. In August 2018 the Ministry of Social Development opened a shelter for approximately 40 women at risk of gender-based violence and “honor” crimes. While previously authorities held all of these women in the same administrative detention facilities as criminals, the PSD began transferring some of them directly to the shelter.

NGOs reported decreased numbers of women at risk of becoming victims of “honor” crimes but increased numbers of women at risk of domestic violence. Human rights organizations reported that approximately 60 women had been transferred to the shelter for varying periods of time since August 2018. Amnesty International estimated there were dozens of women administratively detained at Juweideh Prison for “absence” from home without permission of a male guardian or sex outside of marriage. Amnesty International also reported that five women allegedly detained in Juweideh Prison for having sex outside of marriage were kept in prison despite the general amnesty in February, due to a determination by authorities that a family member must provide a guarantee prior to a woman’s release.

During the year local NGOs said that officials detained some foreign laborers; those whose employers did not administratively secure their release were held for working without authorization, being absent from their authorized workplace, or lacking proper residency permits.

Pretrial Detention: The law criminalizes detaining any person for more than 24 hours without a prosecutor's authorization. Rights activists said authorities routinely ignored this limit, and according to human rights organizations, impunity was very common for violations. As of June, 39 percent of all those in detention were pretrial detainees, according to the University of London's World Prison Brief, an 11 percent decrease from 2018.

The GID continued to subject individuals to prolonged pretrial detention, solitary confinement, torture, and other mistreatment, according to the National Center for Human Rights and other organizations.

Detainee's Ability to Challenge Lawfulness of Detention before a Court: The law does not have an explicit provision that entitles victims of arbitrary or unlawful detention to restitution. The Criminal Procedures Law does not provide for routine judicial review of administrative detentions ordered by the 12 governors. Detainees can bring civil lawsuits for restitution for arbitrary or unlawful detention or bring criminal lawsuits for illegal incarceration; however, the legal community reported this seldom occurred. Detainees must hire a lawyer with at least five years' experience, must pay their own fees, and must present a copy of the order of detention. There were no cases of restitution during the year.

e. Denial of Fair Public Trial

The law provides for an independent judiciary. In August an amendment to the law moved the judicial training institute from the Ministry of Justice to the Judicial Council and granted judges lifetime tenure, further strengthening judicial independence, according to local NGOs.

Trial Procedures

The law provides for the right to a fair and public trial, and the judiciary generally sought to enforce this right. The law presumes that defendants are innocent. Officials sometimes did not respect the right of defendants to be informed promptly and in detail of the charges against them or to a fair and public trial without undue delay. According to the law, all civilian court trials and SSC trials are open to the public unless the court determines that the trial should be closed to protect the public interest. Authorities occasionally tried defendants in their absence. The country allows defendants to be tried in their absence, but it requires a retrial upon their return. The SSC has more restrictions than the other courts on conducting trials when the defendant is not present. Defendants are entitled to

legal counsel, provided at public expense for the indigent in cases involving the death penalty or life imprisonment, but only at the trial stage. Most criminal defendants lacked legal representation prior to and at trial. Frequently, defendants before the SSC met with their attorneys only one or two days before their trial began. Authorities did not accord defendants adequate time and facilities to prepare their defense. Authorities did not uniformly provide foreign residents, especially foreign workers who often did not speak Arabic, with free translation and defense. During the year the Ministry of Justice, in collaboration with the Jordanian Bar Association and another human rights NGO, established a designated unit to provide legal aid services to witnesses and defendants, as mandated by law. Through October more than 550 individuals received legal aid through this program.

Defendants may present witnesses and evidence and may cross-examine witnesses presented against them. Defendants do not have the right to refuse to testify. Although the constitution prohibits the use of confessions extracted by torture, human rights activists noted that courts routinely accepted confessions allegedly extracted under torture or mistreatment. Defendants can appeal verdicts; appeals are automatic for cases involving the death penalty or a sentence of more than 10 years' imprisonment. When defendants at trial recant their confessions obtained during the criminal investigation, those confessions are not used against the defendant; the trial then relies solely on the evidence collected and presented at trial.

In the SSC, defendants have the right to appeal their sentences to the Court of Cassation, which has the authority to review issues of both fact and law.

The government allowed international observers to visit the SSC and the military and police courts to observe court proceedings throughout the year. For example, in February officers of a foreign embassy observed a terrorism case being tried at the SSC.

Civil, criminal, and commercial courts accord equal weight to the testimony of men and women. In sharia courts, which have civil jurisdiction over Muslim marriage, divorce, and inheritance cases, the testimony of one man equals that of two women.

The law places the age of criminal responsibility at 12 years. The law stipulates that juveniles charged with committing a crime along with an adult be tried in a juvenile court. Juveniles tried at the SSC were held in juvenile detention centers.

The law stipulates alternative penalties for juvenile offenders, including vocational training and community service.

Political Prisoners and Detainees

During the year there were numerous instances of the government detaining and imprisoning activists for political reasons, including criticizing the government, criticizing the government's foreign policy, publishing criticism of government officials and official bodies, criticizing foreign countries, and chanting slogans against the king. Citizens and NGOs alleged the government continued to use administrative detention for what appeared to be political reasons.

In April activist and teacher Sabri Mashaleh was convicted of insulting the king for a series of posts he made on his personal Facebook page. Mashaleh was sentenced to one year in prison at the Sawaqa detention facility, according to an international NGO. In March authorities arrested human rights activist Ahmed Tabanja and temporarily detained him for live-streaming a protest by unemployed citizens in front of the royal court.

Civil Judicial Procedures and Remedies

Individuals may bring civil lawsuits related to human rights violations through domestic courts.

f. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, but individuals widely believed that security officers monitored telephone conversations and internet communication, read private correspondence, and engaged in surveillance without court orders. While no examples were given to justify these beliefs, they widely believed the government employed an informer system within political movements and human rights organizations.

During the year the Transportation Regulatory Commission issued new regulations for ride-sharing applications like Uber and Careem that allows law enforcement officials and courts to access passengers' data without a warrant, including location, ride details, and personal information.

Some Jordanian tribes continued to employ the custom of *jalwa*, where the relatives of a person accused of homicide are displaced to a different area pending resolution between the involved families to prevent further bloodshed. Even though *jalwa* and tribal law were abolished from the legal system in 1976, security officials sporadically continued to facilitate banishment and other tribal dispute resolution customs. Family members of such a tribe told Human Rights Watch that in July authorities expelled more than 200 of their relatives from Madaba Governorate.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Expression, Including for the Press

The constitution provides, “The State shall guarantee freedom of opinion; and every Jordanian shall freely express his opinion by speech, writing, photography, and the other means of expression, provided that he does not go beyond the limits of the law.” Authorities applied regulations to limit freedom of speech and press in practice. Authorities applied articles of the counterterrorism law, cybercrimes law, press and publications law, and penal code to arrest local journalists.

Freedom of Expression: The law permits punishment of up to three years’ imprisonment for insulting the king, slandering the government or foreign leaders, offending religious beliefs, or fomenting sectarian strife and sedition. During the year the government restricted the ability of individuals to criticize the government by arresting a number of activists for political expression. Authorities used laws against slander of public officials, blackmail, and libel to restrict public discussion, as well as employed official gag orders issued by the public prosecutor.

During the year Human Rights Watch alleged that the government increasingly targeted activists on charges ranging from insulting the king to undermining the political regime to online slander, which they say violated activists’ right to free expression. On May 20, a group of activists called Jordan Hirak-Karamah (English translation: The Jordanian Movement for Dignity) started an online petition that gathered several hundred signatures protesting the detention of 19 activists who were arrested for their participation in protests and for chanting slogans critical of the king.

In December 2018 the attorney general ordered the detention of media personality Mohammad al-Wakeel, founder of al-Wakeel Media Group, along with an editor working at his website, for posting a caricature deemed offensive to Christians and

Muslims. The two men were charged with sectarian incitement and causing religious strife under Article 15 of the Cybercrimes Law and Article 38 of the Press and Publications Law. Authorities released al-Wakeel and the editor after two days at the Juweideh detention center.

In November 2018 authorities arrested the secretary general of the organization Mouminoun (Believers) without Borders, Younis Qandil, and charged him with slander, sectarian incitement, and broadcasting false information for staging his own kidnapping. Earlier in the year, the Ministry of Interior cancelled an academic workshop organized by Qandil's group, which some considered an attack and insult on Islam. Younis was sentenced to detention at the Juweideh correctional center. As of September he remained in detention. During the year the public prosecutor dropped charges in the 2017 case against local journalist Mohamma Qaddah for slander, incitement, and defamation for his posting of a video on Facebook that authorities described as "insulting" and "derogatory" to women in the country.

Press and Media, Including Online Media: All publications must obtain licenses from the government to operate. Multiple daily newspapers operated; observers considered several as independent of the government, including one regarded as close to the Islamic Action Front (the Jordanian Muslim Brotherhood's legally registered political party). Observers also judged several daily newspapers to be close to the government. The independent print and broadcast media largely operated with limited restrictions, and media observers reported government pressure, including the threat of large fines and prison sentences, to refrain from criticizing the royal family, discussing the GID, covering ongoing security operations, using language deemed offensive to Islam, or slandering government officials. The government influenced news reporting and commentary through political pressure on editors and control over important editorial positions in government-affiliated media. Journalists of government-affiliated and independent media reported that security officials used bribes, threats, and political pressure to force editors to place articles favorable to the government in online and print newspapers.

The law grants the head of the Media Commission authority to close any unlicensed theater, satellite channel, or radio channel. During the year the Media Commission granted broadcasting licenses to companies owned by citizens and foreigners. Those with licenses may not legally broadcast anything that would harm public order, social security, national security, or the country's relations with a foreign country; incite hatred, terrorism, or violent sedition; or mislead or

deceive the public. The cabinet, however, must justify the reasons for rejecting a license and allow the applicant to appeal the decision to the judiciary. There is a fine for broadcasting without a license.

During the year the government rejected broadcast licensing fee exemptions for community radio stations proposed by the Media Commission in February 2018 for financial reasons, according to the media commissioner.

The government has a majority of seats on the board for the leading semiofficial daily newspaper, *al-Rai*, and a share of board seats for *ad-Dustour* daily newspaper. According to press freedom advocates, the GID's Media Department must approve editors in chief of progovernment newspapers.

Media observers noted that, when covering controversial subjects, the government-owned Jordan Television, Jordan News Agency, and Radio Jordan reported only the government's position.

By law any book can be published and distributed freely. Nonetheless, if the Media Commission deems that passages violate public norms and values, are religiously offensive, or are "insulting" to the king, it can request a court order to prohibit the distribution of the book. During the year the Media Commission banned distribution of 55 books for insulting religion, displaying pornographic images, and promoting homosexuality. The commission approved the importation of approximately 800,000 books. The Media Commission continued to ban the distribution of selected books for religious and moral reasons.

The Media Commission licenses all public-opinion polls and survey research centers in accordance with the Press and Publication Law.

Violence and Harassment: The government subjected journalists to harassment and intimidation.

In its annual report, *The Status of Media Freedoms in Jordan in 2018*, the Center for Defending the Freedom of Journalists (CDFJ) documented 68 specific cases of violations of freedoms against journalists and media organizations. The CDFJ reported a decline in media freedom violations from 2017 but attributed it primarily to self-censorship and the government's denial of access to journalists in covering sit-ins and protests during the year.

Authorities arrested or temporarily detained some journalists, and government officials or private individuals threatened some journalists.

Al-Rai journalist Hussein al-Sharaa was sentenced in 2018 to six months of imprisonment (the highest sentence for such offense) following a complaint filed against him by the PSD for a post he wrote on Facebook, which the PSD considered offensive. The Jordan Press Association appealed the verdict for its issuance without the presence of the defendant's lawyer. The appeals court released al-Sharaa on bail until completion of the judicial procedures, and the case remained pending.

Censorship or Content Restrictions: The government directly and indirectly censored the media. The CDFJ report noted continuing widespread self-censorship among journalists in 2018. Journalists claimed that the government used informants in newsrooms and exercised influence over reporting and that GID officials censored reporting. Editors reportedly received telephone calls from security officials instructing them how to cover events or to refrain from covering certain topics or events, especially criticism of political reform. Bribery of journalists took place and undermined independent reporting. Occasionally, government officials provided texts for journalists to publish under their bylines. An opinion poll conducted by the CDFJ found 92 percent of journalists self-censored their reporting in 2018. Journalists cited the declining financial conditions of media outlets, the threat of detention and imprisonment for defamation for a variety of offenses, and court-ordered compensation of as much as 150,000 Jordanian dinars (JD) (\$210,000). At times editors in chief censored articles to prevent lawsuits. The government's use of "soft containment" of journalists, including withholding financial support, scholarships for relatives, and special invitations, led to significant control of media content.

During the year the Media Commission did not circulate any official gag orders restricting discussion in all forms of media, including social media. For grand felony cases or cases of domestic violence, the public prosecutor may issue a gag order to protect the victims or witnesses involved.

Libel/Slander Laws: Article 11 of the Cybercrimes Law allows public prosecutors to detain individuals suspected of violating libel and slander laws. Government prosecutors relied on privately initiated libel, slander, and defamation lawsuits to suppress criticism of public figures and policies. Dozens of journalists, as well as members of parliament, faced libel and slander accusations filed by private

citizens. Amendments to the law place the burden of proof for defamation on the complainant.

In January, Amman's attorney general charged retired civil defense brigadier general Khaled al-Dabbas with slander and defamation, disclosure of secrets without a legitimate reason, and broadcasting false news, for a comment al-Dabbas published on Facebook. After riots broke out in the retired general's hometown, police intervened to end the protests, and authorities released al-Dabbas the next day. The case was later dismissed for insufficient evidence.

Also in January the attorney general detained activist Mustafa Shoman on charges of slander after he posted a Facebook video implying criticism of the king and crown prince after they invited a municipal worker to join them in watching the national soccer team's game, calling the interaction staged. Shoman was released from detention on bail in February, and the case continued.

National Security: The government used laws protecting national security to restrict criticism of government policies and officials.

Internet Freedom

The government restricted or disrupted access to the internet and censored online content; there were credible reports that the government monitored private online communications without appropriate legal authority. The law requires the licensing and registration of online news websites, holds editors responsible for readers' comments on their websites, requires that website owners provide the government with the personal data of its users, and mandates that editors in chief be members of the Jordan Press Association. The law gives authorities explicit power to block and censor websites. The Press and Publications Law allows the media commissioner to ban websites without a court order.

A human rights organization reported that on May 6 a detained teacher and activist from Dhiban, 31-year-old Sabri al-Masha'leh, went on hunger strike. The NGO reported that al-Masha'leh's family told them the Ministry of Interior's Electronic Crimes Unit summoned him on March 28 for questioning related to Facebook posts he wrote in February, one of which referred to the king by name. According to the same report, authorities charged and convicted al-Masha'leh with insulting the king and sentenced him to two years in prison in April. The court later reduced his sentence to one year, which al-Masha'leh served in Sawaqa Prison.

In March, NGOs reported that authorities blocked access to a news website created by Jordanian expatriates to document political affairs and arrests of activists. Authorities continued to block the website of an online lifestyle magazine with an LGBTI target audience on the grounds that it was an unlicensed publication.

According to the Media Commission, there is no registration fee for a website. News websites must employ editors in chief with at least four years' membership in the Jordan Press Association. The owner and editor in chief can be fined between 3,000 JD (\$4,200) and 5,000 JD (\$7,000), in addition to criminal penalties, for website content that "includes humiliation, defamation, or disparagement of individuals in a manner that violates their personal freedoms or spreads false rumors about them."

According to journalists, security forces reportedly demanded that websites remove some posted articles. The government threatened websites and journalists that criticized the government, while it actively supported those that reported favorably on the government. The government monitored electronic correspondence and internet chat sites. Individuals believed they were unable to express their views fully or freely via the internet, including by personal email.

During the year, according to a local NGO, security forces blocked live-streamed videos of protests posted on Facebook.

Academic Freedom and Cultural Events

The government placed some limits on academic freedom. Some members of the academic community claimed there was a continuing intelligence presence in academic institutions, including monitoring of academic conferences and lectures. The government monitored political meetings, speech on university campuses, and sermons in mosques and churches. Academics reported the GID must clear all university professors before their appointment. Academics also reported university administration must approve all research papers, forums, reading materials, movies, or seminars. Administrators clear potentially controversial material through the GID. Authorities edited commercial foreign films for objectionable content before screening in commercial theaters.

In July the Jordanian Artists Association encouraged nonparticipation in the American film *Jaber*, claiming the movie had a "Zionist agenda" for propagating Israelis' rights over Petra and south Jordan, according to a press release. Jordanian director and actor Ali Alyan subsequently withdrew his participation in the film.

Media reports indicated that the government forced a stop to production of the film following this controversy, and in August filmmakers announced the film's cancellation.

In June the American media company Netflix released its first international original series from the Middle East, *Jinn*. Filmed in Jordan with Jordanian actors, the five-episode series sparked public controversy due to scenes depicting teenage drinking, smoking, romance, and vulgar language. Despite criticism from the public, members of parliament, and the Grand Mufti, the government did not take any adverse action towards Netflix, nor did it make efforts to censor the show.

b. Freedoms of Peaceful Assembly and Association

The government limited freedoms of peaceful assembly and association.

Freedom of Peaceful Assembly

The constitution provides for freedom of assembly, but the government sometimes limited this right. Security forces provided security at demonstrations granted permits by government or local authorities.

The law requires a 48-hour notification to the local governor for any meeting or event hosted by any local or international group. While not required by law, several local and international NGOs reported that hotels, allegedly at the request of security officials, required them to present letters of approval from the governor prior to holding trainings, private meetings, or public conferences. There were several reported cases of governor denials without explanation, according to the NCHR and international human rights NGOs. Without letters of approval from the government, hotels cancelled the events. In some cases NGOs relocated the events to private offices or residences, and the activities were held without interruption.

Protests regarding economic policies, corruption, and government ineffectiveness occurred across the country throughout the year. Activists, ranging from as few as two dozen to as many as 200, organized a weekly gathering in a parking lot near the prime minister's office most Thursdays. In March hundreds of unemployed citizens walked to the royal court in Amman from locations throughout the country to demand job opportunities. Authorities authorized the parking lot location as an alternative to the protesters' initial preference of a large traffic circle closer to the prime minister's office. Occasionally these gatherings shrank to only a dozen or so participants.

Security services and protesters generally refrained from violence during demonstrations. Occasional scuffles occurred when protesters attempted to break through security cordons intended to limit demonstrations to particular locations. In such situations police occasionally used tear gas.

Security services detained political activists for shouting slogans critical of authorities during protests. Some were held without charge, others were charged with insulting the king, undermining the political regime, or slander. Most detentions lasted for days, but some lasted several months. Six detainees held a hunger strike from May through June to protest their arrest and detention. As of October more than 30 individuals remained in detention for reasons connected to freedom of expression, according to media reports and local NGOs.

The Jordan Open Source Association released a report documenting technical evidence that Facebook's live-streaming function was sometimes deliberately blocked during large protests. The report did not identify where such interference might have originated.

In September the teachers' syndicate went on strike to demand a 50 percent salary increase. On the first day of the strike, September 5, the syndicate organized demonstrations in several governorates to emphasize their demands, with the largest in Amman. More than 10,000 persons participated across the country. Authorities denied the syndicate permission to gather at a traffic circle near the prime minister's office, a location usually preferred by antigovernment protesters, instead authorizing them to gather near the parliament. When teachers refused the alternate location and attempted to reach the traffic circle, police responded with tear gas.

On June 9, dozens of demonstrators gathered in front of the NCHR to demand the release of detained activists. Authorities arrested approximately 20 protesters and journalists for disrupting traffic along a major thoroughfare and participating in an unauthorized gathering and released them later that day. NCHR officials criticized the arrests, and on June 10, they held a press conference condemning attempts to prevent citizens from peacefully assembling in public.

In May protesters closed roads in the Hashimiyeh area of Zarqa Governorate, burned tires, and demanded the release of a detained activist. Gendarmerie forces fired tear gas at the protesters.

Freedom of Association

The constitution provides for the right of association, but the government limited this freedom. The law authorizes the Ministry of Social Development and Ministry of Trade, Industry, and Supply to approve or reject applications to register organizations and to prohibit organizations from receiving foreign funding for any reason. It prohibits the use of associations for the benefit of any political organization. The law also gives the ministry significant control over the internal management of associations, including the ability to dissolve associations, approve boards of directors, send government representatives to any board meeting, prevent associations from merging their operations, and appoint an auditor to examine an association's finances for any reason. The law requires associations to inform the Ministry of Social Development of board meetings, submit all board decisions for approval, disclose members' names, and obtain security clearances for board members from the Interior Ministry. The law includes penalties, including fines up to 10,000 JD (\$14,000), for violations of the regulations. The Ministry of Social Development is legally empowered to intervene in NGO activities and issue warnings for violations of the law. Notified NGOs are given a two-month probationary period to address violations.

As of September 24, the ministry received 149 applications for foreign funding and approved 75. NGOs reported that unexplained, months-long delays in the decision process continued.

Citizens widely suspected that the government infiltrated civil society organizations, political parties, and human rights organizations and their internal meetings.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

d. Freedom of Movement

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, although there were some restrictions.

In-country Movement: The government placed some restrictions on the free internal movement of registered Syrian refugees and asylum seekers.

e. Internally Displaced Persons

Not applicable.

f. Protection of Refugees

With the support of the humanitarian community, the government registered and facilitated access to civil documentation for Syrian refugees through the urban verification exercise for refugees, which concluded in March. Through this exercise, the Ministry of Interior issued 478,129 identification cards, allowing refugees to regularize their status living outside of camps, giving them freedom of movement and access to public services and assistance. Additionally, the government returned 205,072 confiscated-upon-arrival documents to Syrian refugees. According to the Office of the UN High Commissioner for Refugees (UNHCR), there was no backlog of registration for Syrian refugees, and it was possible for Syrians to register with UNHCR upon arrival in the country at centers in Amman and Irbid.

There were reports of forced relocations to Azraq refugee camp, including many to Azraq's restricted Village 5, as an alternative to deportation for offenses by Syrian refugees; such offenses encompassed "irregular status" (expired registration documents or working without a work permit); criminal activities; and potential security risks, without the latter being clearly defined. As of September, Azraq camp hosted more than 39,900 individuals, including more than 10,000 adults and children in the fenced-off Village 5 area. In 2018 NGOs estimated that the government forcibly relocated more than 7,200 refugees to Azraq camp, including more than 4,000 to Village 5 for security reasons. The vast majority of these refugees were not informed of the reasons for their detention and did not receive legal assistance. Residents of Village 5 had access to basic humanitarian assistance inside the village but had limited access to the broader camp facilities, including the camp hospital, which required a security escort. Although several hundred refugees were screened out of Village 5 each month, the screening process allowing Village 5 residents to relocate to the larger camp remained irregular and slow. Reportedly, many Village 5 residents had remained in this location for more than three years.

A number of Palestinian refugees from Syria (PRS) and other refugees resided in King Abdullah Park (KAP), an unused fenced public space repurposed since 2016 to house PRS, mixed Syrian-PRS families, and some individuals of other

nationalities who arrived from Syria. As of August, 479 individuals were held in KAP, of whom 330 were PRS, 135 Syrians, and 14 of other nationalities. Civil documents of PRS and other refugees were held by authorities during their stay in the camp, and residents were required to apply for leave in order to go outside the camp, severely limiting their freedom of movement. Many PRS who lacked legal status in Jordan limited their movements to avoid coming into contact with authorities. Access to basic civil services--including renewal of identity documents, the registration of marriages, deaths, and births--remained highly complex for this group. These vulnerabilities put undocumented refugees at additional risk of abuse by third parties such as employers and landlords.

For those PRS who held Jordanian citizenship, revocation of that citizenship remained a concern. The UN Relief Works Agency (UNRWA) was aware of at least 50 cases of citizenship revocation since the beginning of the Syrian conflict in 2011. In most cases authorities provided no information regarding the reasons for the revocation.

Access to Asylum: The country's laws do not provide for the granting of asylum or refugee status, and the government lacked a formal system of protecting refugees. A 1998 memorandum of understanding between the government and UNHCR, renewed in 2014, contains the definition of a refugee, confirms adherence to the principle of nonrefoulement, and allows recognized refugees a maximum stay of one year, during which period UNHCR must find them a durable solution. The time limit is renewable, and the government generally did not force refugees to return to their country of origin. As of 2014, authorities required all Syrians in the country to register with the Ministry of Interior and obtain a ministry-issued identification card.

Several of the country's border crossings with Syria were closed to new refugee arrivals. The Nassib border crossing with Syria reopened in October 2018 after remaining closed to all traffic for three years, although the Rukban border crossing remained closed. The government determined it would not accept additional Syrian refugees after a 2016 suicide attack along the northeast border with Syria, declaring the surrounding area a "closed military zone." The government restricted humanitarian access to the area on the Jordanian side of the border. The government's 2013 announcement that it would not allow entry of PRS remained in effect.

In January the government halted all UNHCR registrations of new non-Syrian refugee asylum seekers. Citing misuse of medical, business, and other visas, the

cabinet prohibited registration of non-Syrian refugees pending a government review of registration processes and procedures. As of September the halt in registrations affected more than 4,500 pending refugee cases, primarily from Sudan, Somalia, Egypt, and Yemen.

Employment: Since 2016, the government had issued more than 153,000 work permits to Syrians, 21 percent of which were issued to refugees residing in refugee camps. More than 30,000 of these work permits remained active.

Tens of thousands of Syrian refugees continued to work in the informal economy. Very few non-Syrian refugees had access to the formal labor market, and due to the difficulty in obtaining documentation and work permits and expenses involved in seeking work authorization, many worked in the unofficial labor market.

During the year the Ministries of Interior and Labor, in coordination with the United Nations, permitted Syrian refugees living in the camps to apply for work permits. The agreement allows camp-based refugees to use their work permits as a 30-day leave pass to work outside the camp. Camp-based refugees receiving work permits must report to the camp at least one day per month.

Some residents of Jordan of Palestinian descent, such as those referred to as “Gazans” for short, do not have Jordanian citizenship. To accommodate this population, authorities issued Palestinian refugees originally from Gaza two-year temporary Jordanian passports without national identity numbers, which functioned as travel documents and provided these refugees with permanent residency in Jordan. Without a national identity number, however, Palestinian refugees from Gaza were unable to fully access national support programs and found themselves excluded from key aspects of health and social services support. Those refugees from Gaza who were not registered refugees with UNRWA also experienced restrictions and hindrances in accessing education, obtaining driving licenses, opening bank accounts, and purchasing property.

Access to Basic Services: The government allowed Syrian and other UNHCR-registered refugees to access public health and education facilities. In March the government reduced the fees for Syrian refugees to the same rate as uninsured Jordanians for access to primary and secondary medical care, and exempted them from paying fees for maternity and childhood care. Other non-Syrian refugees, however, continued to pay the foreigner’s rate for health care, a cost unaffordable to most refugees.

The government continued to provide free primary and secondary education to Syrian refugee children and to permit all school-age Syrian refugees access to education. As of the end of the 2018-19 academic year, authorities had not fully completed this objective, and an estimated 83,900 Syrians were still not receiving formal or informal education. Non-Syrian refugees must pay to attend government schools. Public schools, particularly in the north of the country, were overcrowded, and some schools operated on a double-shift schedule to accommodate Syrian students. The government increased the number of double-shift schools to allow additional Syrian refugee students to obtain formal education. Through September more than 134,000 refugee students were enrolled for the 2018-19 school year.

For those not eligible to access formal education because they have been out of school for three or more years, the Ministry of Education developed a catch-up program for refugee students between the ages of nine and 12. Children age 13 and older who were not eligible to enroll in formal education could also participate in nonformal education drop-out programs implemented by NGO partners, in close coordination with the Ministry of Education. A total of 17,575 children benefitted from certified nonformal education in 2018.

Some refugee children continued to face barriers to attending public schools, including lack of transportation, long distances to schools, bullying by fellow students and teachers, or child labor.

Palestinian refugees from Gaza and other non-West Bank areas who entered the country following the 1967 war were not entitled to services, including access to public assistance and higher education. Earlier refugees from Gaza, who came to Jordan between June 1946 and May 1948, were eligible to receive UNRWA services.

Temporary Protection: The government provided temporary protection to individuals who may not qualify as refugees. The government tolerated the prolonged stay of many Iraqis and other refugees beyond the expiration of the visit permits under which they had entered the country. Iraqi and other non-Syrian refugees accrued fines for overstaying their visit permits. Refugees must pay or settle the fines and penalties prior to receiving an exit visa from Jordan and face a five-year ban from re-entry into Jordan.

g. Stateless Persons

Only fathers can transmit Jordanian citizenship. Women do not have the legal right to transmit Jordanian citizenship to their children. Children of female citizens married to noncitizens receive the nationality of the father. All children, regardless of nationality or status, can enroll in formal education, although in practice the lack of proper documentation sometimes led to delays or obstacles enrolling children in school. If children of Jordanian mothers and noncitizen fathers apply and meet certain criteria, they may gain access to certain services enjoyed by citizens, including subsidized health care; the ability to own property, invest, and obtain a Jordanian driver's license; and employment priority over other foreigners. To access these services, children must obtain a special identification card through the Civil Status Bureau. Under the law children of Jordanian mothers and noncitizen fathers who apply for social services must reside in the country and prove the maternal relationship. By law the cabinet may approve citizenship for children of Jordanian mothers and foreign fathers under certain conditions, but this mechanism was not widely known, and approval rarely occurred.

Women may not petition for citizenship for noncitizen husbands, who may apply for citizenship only after fulfilling a requirement that they maintain continuous Jordanian residency for 15 years. Once a husband has obtained citizenship, he may apply to transmit citizenship to his children. Such an application could take years, and the government can deny the application.

Syrian refugees were sometimes unable to obtain birth certificates for children born in the country if they could not present an official marriage certificate or other nationality documents, which were sometimes lost or destroyed when they fled or confiscated by government authorities when they entered the country. A large number of Syrian marriages reportedly took place in Jordan without registration. The government opened a legal process for such cases to adjust and obtain registration documents. Refugee households headed by women faced difficulty in certifying nationality of offspring in absence of the father, which increased the risk of statelessness among this population. Civil registry departments and sharia courts in the Za'atri and Azraq camps helped refugees register births.

Section 3. Freedom to Participate in the Political Process

The law does not provide citizens the ability to choose their executive branch of government. The king appoints and dismisses the prime minister, cabinet, and upper house of parliament; can dissolve parliament; and directs major public policy initiatives. Citizens have the ability to choose the lower house of parliament in generally credible periodic elections based on universal and equal suffrage and

conducted by secret ballot. Citizens also elect 97 of the 100 mayors, most members of governorate councils, and all members of municipal and local councils. While the voting process was well run, official obstacles to political party activity and campaigning limited participation. International organizations continued to have concerns about the gerrymandering of electoral districts. The cabinet, based on the prime minister's recommendations, appoints the mayors of Amman, Wadi Musa (Petra), and Aqaba, a special economic zone. Elections for the lower house of parliament took place in 2016. Elections for mayors, governorate councils, and municipal councils took place in 2017.

Elections and Political Participation

Recent Elections: The government held parliamentary elections in 2016. Prior to the 2016 election, the government instituted reforms that introduced a proportional representation system and restored block voting. The Independent Election Commission (IEC), an autonomous legal entity, administered the polls. It supervises and administers all phases of parliamentary elections, regional and municipal elections, as well as other elections called by the cabinet. Local and foreign monitors noted the 2016 election was technically well administered. Politicians and activists reported most government interference occurred prior to the election, in the form of channeling support to preferred candidates and pressuring others not to run.

The 2016 election exhibited important technical competence in administration, but observers cited allegations of vote buying, ballot box tampering in one region, and other abuses. Despite the reforms that preceded the 2016 election, some international and domestic observers of the election process expressed reservations about inadequacies in the electoral legal framework and stressed the need to allocate seats to districts proportionally based on population size. However, the 2016 electoral reforms prompted several Islamist parties to end a six-year election boycott. The Islamic Action Front won 15 seats, including 10 for party members.

The 2017 governorate and municipal elections marked the first time the IEC administered subnational elections, which had previously been managed by the Ministry of Interior. In addition to the election of mayors and local councils, the election seated new governorate-level councils. Many monitors praised the elections as technically well run, but a nongovernmental elections monitoring body, Rased, registered more than 500 allegedly illegal incidents.

Political Parties and Political Participation: Political parties have been legal since 1992. The law places supervisory authority of political parties in the Ministry of Political and Parliamentary Affairs. Political parties must have 150 founding members, all of whom must be citizens habitually resident in the country and not be members of non-Jordanian political organizations, judges, or affiliated with the security services. There is no quota for women when founding a new political party. Parties may not be formed on the basis of religion, sect, race, gender, or origin (meaning that they may not make membership dependent on any of these factors). The law stipulates citizens may not be prosecuted or discriminated against for their political party affiliation. Most politicians believed that the GID would harass them if they attempted to form or join a political party with a policy platform.

In October the cabinet approved a new bylaw that increases the benchmarks parties must meet to receive funding in an effort to encourage actual political activity. Previously, all political parties who met certain membership levels received equal government funding whether or not they participated in elections or conducted any other activities. Some of the benchmarks in the new bylaw include the number of candidates fielded in elections, the percentage of votes won, the number of seats attained, and the number of female and youth candidates who win seats.

The Committee on Political Party Affairs oversees the activities of political parties. The secretary general of the Ministry of Political and Parliamentary Affairs chairs the committee, which includes a representative from the Ministry of Interior, Ministry of Justice, Ministry of Culture, National Center for Human Rights, and civil society. The law grants the committee the authority to approve or reject applications to establish or dissolve parties. It allows party founders to appeal a rejection to the judiciary within 60 days of the decision. According to the law, approved parties can only be dissolved subject to the party's own bylaws or by a judicial decision for affiliation with a foreign entity, accepting funding from a foreign entity, violating provisions of the law, or violating provisions of the constitution. The law prohibits membership in unlicensed political parties. There were approximately 50 registered political parties, but they were weak, generally had vague platforms, and were personality centered. The strongest and most organized political party was the Islamic Action Front.

Participation of Women and Minorities: No laws limit participation of women or minorities in the political process, and they did participate. The electoral law limits parliamentary representation of certain minorities to designated quota seats. Human rights activists cited cultural bias against women as an impediment to

women participating in political life on the same scale as men. There are quotas for women in the lower house of parliament, governorate councils, municipal councils, and local councils. Women elected competitively or appointed through quota systems tended to be small minorities in national and local legislative bodies and executive branch leadership positions.

The 27-member cabinet included four female ministers: the minister for institutional performance development, minister of tourism and antiquities, minister of energy and mineral resources, and minister of social development. Of the 376 governorate seats, 53 were held by women. At the municipal council level, women won 28 indirectly elected seats and 57 by quota, of 1,783 total municipal council seats. At the local council (village and neighborhood) level, women won 231 seats in free competition and 324 through the quota system of 1,179 seats. No women won mayorships.

Citizens of Palestinian origin were underrepresented at all levels of government and the military. The law reserves nine seats in the lower house of parliament for Christians and three seats for the Circassian and Chechen ethnic minorities combined, constituting an overrepresentation of these minorities. The law stipulates that Muslims must hold all parliamentary seats not specifically reserved for Christians. There are no reserved seats for the relatively small Druze population, but its members may hold office under their government classification as Muslims. Christians served as deputy prime minister, cabinet ministers, senators, and ambassadors. There was one Druze cabinet member.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption, although the government did not implement the law effectively. Some officials reportedly engaged in corrupt practices with impunity. During the year there were some investigations into allegations of corruption but very few convictions. The use of family, business, and other personal connections to advance personal economic interests was widespread.

The Jordan Integrity and Anticorruption Commission (JIACC) is the main body responsible for combating corruption, and the Central Bank's Anti-Money Laundering Unit is responsible for combating money laundering. Despite increased investigations, some local observers questioned the JIACC's effectiveness due to its limited jurisdiction, insufficient staff, and the small number of investigations involving senior officials or large government projects. There

were credible allegations that the commission failed to investigate cases involving high-level government officials. In July parliament amended the integrity and anticorruption law to give the JIACC more authority to access asset disclosure filings. The amendment empowers the JIACC to request asset seizures, international travel bans, and suspension of officials under investigation for corruption. The amendment also increases the JIACC's administrative autonomy by enabling the commission to update its own regulations and protecting JIACC board members and the chairperson from arbitrary dismissal.

Corruption: In March the SSC began the trial of 54 defendants accused of illegal production and smuggling of tobacco. In December 2018 the government announced it had extradited from Turkey the key suspect in the case, businessman Awni Motee, who fled the country before being arrested in 2018. In January the SSC prosecutor ordered the detention of a former customs department director and former minister of water and irrigation as well as four serving officials linked to the case. The case continued at year's end.

Financial Disclosure: The law requires certain government officials, their spouses, and dependent children to declare their assets privately to the Ministry of Justice within three months of their assuming a government position. Officials rarely publicly declared their assets. Authorities blocked efforts by transparency activists to identify officials publicly who did not declare their assets. In the event of a complaint, the chief justice or JIACC officials may review the disclosures. Under the law failure to disclose assets could result in a prison sentence of one week to three years or a fine of five to 200 JD (\$7 to \$280). No officials were punished for failing to submit a disclosure.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Abuses of Human Rights

A number of domestic and international human rights groups operated in the country with some restrictions. The law gives the government the ability to control NGOs' internal affairs, including acceptance of foreign funding. NGOs generally were able to investigate and report publicly on human rights abuses, although government officials were not always cooperative or responsive. In at least one case, security services subjected a human rights NGO to intimidation. A legal aid organization reported that lawyers were harassed for following up on cases and threatened with disbarment by the Jordanian Bar Association.

In June the government announced a decision to require that international human rights NGOs obtain approval from the government prior to receiving funds from headquarters or other foreign sources. The decision was reversed in July.

Government Human Rights Bodies: The National Center for Human Rights (NCHR), a quasi-independent institution established by law, received both government and international funding. The prime minister nominates its board of trustees, and the king ratifies their appointment by royal decree. The board of trustees appoints NCHR's commissioner general. In August a new board of trustees was appointed, which included Islamists, former ministers, former judges, members of parliament, religious leaders, and civil society representatives. The NCHR compiles an annual report assessing compliance with human rights that sometimes criticizes government practices. The NCHR submits the report to the upper and lower houses of parliament, and to the cabinet. NCHR recommendations are not legally binding, but the GCHR is required to respond to the report's recommendations and to measure progress towards international human rights standards.

Ministries' working groups continued to meet and implement their responsibilities under the national human rights action plan, a 10-year comprehensive program launched in 2016 to reform laws in accordance with international standards and best practices, including improving accessibility for persons with disabilities. Developments on the action plan were regularly published on the ministries' websites. During the year the Civil Service Bureau issued regulations in line with the action plan to improve government hiring practices for persons with disabilities. Ministries stated commitment to the plan but expressed frustration with the limited resources available to implement it.

To implement the action plan, the GCHR maintained a team of liaison officers from government, NGOs, security agencies, and other formal institutions to improve collaboration and communication. The GCHR published an official statement inviting civil society to take part in the drafting of the government's report to the UN Human Rights Council Universal Periodic Review (UPR).

In August the prime minister appointed a new head of the GCHR to replace the previous head, who resigned in December 2018. In the interim the GCHR position had remained vacant, and the prime minister established a human rights unit in the Prime Minister's Office. The new GCHR head and the human rights unit coordinate government-wide implementation of the national plan, including drafting and responding to human rights reports. The GCHR office, and the human

rights unit during the GCHR vacancy, convened 35 activities during the year under the national human rights plan, including discussions of the UPR recommendations, inclusion of persons with disabilities in the public and private sectors, gender, trafficking in persons, and general human rights awareness workshops.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law stipulates a sentence of at least 10 years of imprisonment with hard labor for the rape of a girl or woman 15 years old or older. Spousal rape is not illegal. The law makes prosecution mandatory for felony offenses, including rape. Nonfelony offenses, such as certain cases of domestic violence, are first subjected to mediation by the Family Protection Department (FPD) of the PSD. The law provides options for alternative sentencing in domestic violence cases with consent of the victim; during the year the National Council for Family Affairs noted that three cases were referred to alternative sentencing. The government did not effectively enforce the law against rape, and violence against women was widespread. While the reported number of “honor” crimes decreased, deaths resulting from domestic violence increased, according to local NGOs. In August a human rights NGO reported that 17 death cases were recorded since the beginning of the year against women, all of which were a result of domestic violence.

Women may file complaints of rape or physical abuse with certain NGOs or directly with judicial authorities. Due to social taboos and degrading treatment at police stations, however, gender-based crimes often went unreported. As of October the FPD treated and investigated 6,741 cases of domestic violence. The FPD actively investigated cases but gave preference to mediation, referring almost all cases to the social service office. Some NGOs and lawyers reported pressure against taking physical abuse cases to court. Spousal abuse is technically grounds for divorce, but husbands sometimes claimed cultural authority to strike their wives. Observers noted while judges generally supported a woman’s claim of abuse in court, due to societal and familial pressure and fear of violence such as “honor” killings, few women sought legal remedies.

Governors used the Crime Prevention Law to detain women administratively for their protection. The Ministry of Social Development operated a shelter for women at risk of violence and “honor” crimes. In its first year of operation since

opening in 2018, the shelter served 72 women and had room to house up to 40, including administrative detainees from the Juweideh correctional and rehabilitation center, women referred to the shelter by the Family Protection Department (FPD), and women who were directly referred to the shelter by governors. Children younger than age six were allowed to accompany their mothers, including for the first time two newborns who were reunited with their mothers who had previously been detained under protective custody, following advocacy by civil society activists.

The FPD continued to operate a domestic violence hotline and received inquiries and complaints via the internet and email. The Ministry of Social Development maintained a second shelter for female victims of domestic violence in Irbid.

In April the ministry launched a national initiative aimed at preventing and responding to gender-based violence. A manual was also created for providing health care and treating sexual assault victims. NGOs reported that health-care providers and teachers were still hesitant to report abuse of victims due to the absence of witness protection guarantees. Specialized judges continued expediting and classifying domestic violence cases; misdemeanor cases took approximately three months to resolve, according to legal aid NGOs.

Other Harmful Traditional Practices: Through August, 17 women were killed in the country. All cases were pending investigation, with none being identified as an “honor” crime as of November. Civil society organizations stated that many such crimes went unreported, especially in nonurban areas.

There were no reported instances of forced marriage as an alternative to a potential “honor” killing during the year, although NGOs noted that many cases of forced marriage occurred shortly after an accusation of rape due to family and societal pressure before any formal trial began. Observers noted that if a woman marries her rapist, according to customary belief, her family members do not need to kill her to “preserve the family’s honor,” despite the 2017 amendment to the penal code to end the practice of absolving rapists who married their victims. Nevertheless, NGOs noted that this amendment helped reduce such instances and encouraged more women to report rape, especially given the establishment of the shelter.

In August 2018 governors began referring potential victims of “honor” crimes to the Ministry of Social Development shelter instead of involuntary “protective”

custody in a detention facility. During the year governors directly referred 36 women to the shelter.

In April parliament raised the age of marriage in exceptional cases from 15 to 16 and authorized the use of DNA tests and scientific means to identify biological paternal relation of a newborn associated with “rape, deception, and deceit.”

Sexual Harassment: The law strictly prohibits sexual harassment and does not distinguish between sexual assault and sexual harassment. Both carry a minimum prison sentence of four years of hard labor. The law also sets penalties for indecent touching and verbal harassment but does not define protections against sexual harassment. Sexual harassment of women and girls in public was widely reported. In September 2018 the organizers of an outdoor festival were arrested, and the venue was closed after allegations of sexual harassment spread on social media. The ensuing investigation led to criminal charges for the unauthorized sale of alcohol. NGOs reported refugees from Syria and foreign workers, particularly garment workers and domestic workers, were especially vulnerable to gender-based violence, including sexual harassment and sexual assault, in the workplace.

Coercion in Population Control: There were no reports of coerced abortion or involuntary sterilization.

Discrimination: The constitution guarantees equal rights to men and women. The law, however, does not necessarily provide for the same legal status, rights, and inheritance provisions for women as for men. Women experienced discrimination in a number of areas, including divorce, child custody, citizenship, the workplace, and, in certain circumstances, the value of their testimony in a sharia court handling civil law matters.

No specialized government office or designated official handles discrimination claims. The Jordanian National Commission for Women, a quasi-governmental organization, operated a hotline to receive discrimination complaints.

Under sharia, as applied in the country, daughters inherit half the amount that sons receive. A sole female heir receives only half of her parents’ estate, with the balance going to uncles, whereas a sole male heir inherits all of his parents’ property. Women may seek divorce without the consent of their husbands in limited circumstances such as abandonment, spousal abuse, or in return for waiving financial rights. The law allows retention of financial rights under specific circumstances, such as spousal abuse. Special religious courts for recognized

Christian denominations under the Council of Churches adjudicate marriage and divorce for Christians, but for inheritance, Muslim sharia rules apply by default.

The law allows fathers to prevent their children younger than age 18 from leaving the country through a court order, a procedure unavailable to mothers. Authorities did not stop fathers from leaving the country with their children when the mother objected, although divorced mothers may seek injunctions on their former spouses to prevent them taking the children abroad.

The government provided men with more generous social security benefits than women. Civil servants follow the social security law, which contains provisions for family members to inherit the pension payments of deceased civil servants, which are inherited in differing amounts according to the gender of the heir. Laws and regulations governing health insurance for civil servants under the Civil Service Bureau permit women to extend their health insurance coverage to dependents or spouses, even if they are not Jordanians. Men must be citizens to extend full insurance benefits to spouses and dependents.

In April parliament amended the law to allow a non-Muslim mother to retain custody of her Muslim children beyond the age of seven (the previous limit).

Children

Birth Registration: Only fathers can transmit citizenship. The government did not issue birth certificates to all children born in the country during the year. The government deemed some children—including orphans, children of unmarried women, or interfaith marriages involving a Muslim woman and converts from Islam to another religion--"illegitimate" and denied them standard registration. Instead, the government issued these children special national identification numbers that differed from the standard national identification numbers given to most Jordanians, which made it difficult for these children to attend school, access health services, or receive other documentation. Authorities separated children born out of wedlock from their mothers and placed them in orphanages, regardless of the mother's desire for custody. Nonetheless, NGOs reported two cases of newborns allowed to reunite with their mothers who were residing at the Ministry of Social Development shelter.

Education: Education is compulsory from ages six through 16 and free until age 18. No legislation exists to enforce the law or to punish guardians for violating it. Children without legal residency face obstacles to enrolling in public school.

Some children of female citizens and noncitizen fathers must apply for residency permits every year, and authorities did not assure permission (see section 2.g., Stateless Persons). See section 2.f. for information on access to education for Syrian refugees.

Children with disabilities experienced extreme difficulty in accessing constitutionally protected early and primary education.

Child Abuse: No specific law provides protection for children, but other laws specify punishment for child abuse. For example, conviction for rape of a child younger than age 15 potentially carries the death penalty. There were no convictions for rape of a child younger than 15 during the year. Local organizations working with abused children pointed to gaps in the legal system that regularly resulted in lenient sentencing, particularly for family members. In child abuse cases, judges routinely showed leniency in accordance with the wishes of the family. In some cases authorities failed to intervene when confronted with reports of abuse, resulting in escalating violence and ultimately death.

In January 2018 the public prosecutor detained a woman for abuse related to the death of her three-year-old daughter. Forensic reports on her daughter noted widespread traces of torture and abuse and burns on 25 percent of her body. The case remained pending, while the accused woman was held at the Juweideh detention center.

Early and Forced Marriage: The minimum age for marriage is 18. With the consent of both a judge and a guardian, a child as young as 16 years old may be married. Judges have the authority to decide if marriage of girls between 16 and 18 years old would be “in their best interest” and to adjudicate the marriage contract. Early and forced marriage among Syrian refugee populations remained higher than among the general population in Jordan. As of 2018, 36 percent of Syrian marriages in the country involved an underage bride, according to an international NGO. According to local and international organizations, many early marriages were initiated as a negative coping mechanism to mitigate the stresses of poverty experienced by many Syrian refugee families.

Sexual Exploitation of Children: The law stipulates a penalty for the commercial exploitation of children of six months’ to three years’ imprisonment. The law prohibits the distribution of pornography involving persons younger than age 18. The law does not specifically prohibit the possession of child pornography without an intention to sell or distribute. The law penalizes those who use the internet to

post or distribute child pornography. The minimum age of consensual sex is 18, although sexual relations between minors whose marriages the courts approved are legal.

Displaced Children: Given the large refugee population, there were significant numbers of displaced children (see section 2.f.).

Institutionalized Children: Authorities automatically referred cases involving violence against persons with disabilities or institutionalized persons to the FPD. The community monitoring committee highlighted the pervasive use of physical discipline; physical and verbal abuse; unacceptable living conditions; and a lack of educational, rehabilitative, or psychosocial services for wards and inmates.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parent Child Abduction* at <https://travel.state.gov/content/travel/en/International-Parental-Child-Abduction/for-providers/legal-reports-and-data/reported-cases.html>.

Anti-Semitism

Aside from foreigners, there was no resident Jewish community in the country. Anti-Semitism was present in media. Editorial cartoons, articles, and opinion pieces sometimes negatively depicted Jews without government response. The national school curriculum, including materials on tolerance education, did not mention the Holocaust, but it was taught in some private school curriculums.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Persons with Disabilities

The law generally provides equal rights to persons with disabilities, but authorities did not uphold such legal protections. Disabilities covered under the law include physical, sensory, psychological, and mental disabilities. The Higher Council for Affairs of Persons with Disabilities, a government body, worked with ministries, the private sector, and NGOs to formulate and implement strategies to assist persons with disabilities. Citizens and NGOs universally reported that persons

with disabilities faced problems obtaining employment and accessing education, health care, information, communications, buildings, transportation, the judicial system, and other services, particularly in rural areas.

The law requires private companies to hire workers with disabilities, forbids employers from firing employees solely because of their disability, and directs employers to make their workplaces accessible to persons with disabilities.

In July the mayor of Amman announced the launch of the new “Amman bus” project as the first transport system in the country designed for access by persons with disabilities. Media and social media influencers who toured the buses commented that improved public transport system would help make the workplace more accessible for persons with disabilities. During the year the Jordan Free Zones Investment Commission also amended its vehicles bylaw to exempt persons with disabilities from vehicle taxes.

In March, NGOs conducted public debates to raise awareness on inclusive work spaces, including the development of a manual with 40 questions and answers and instructions and guidelines for public and private sector employers to encourage employment of persons with disabilities. An NGO created an e-platform to spread awareness further, in addition to advocacy sessions to engage government institutions and the private sector.

Activists noted the law lacked implementing regulations and funding, and authorities rarely enforced it. Authorities exempted from the quota employers who stated the nature of the work was not suitable for persons with disabilities.

The electoral law directs the government to verify that voting facilities are accessible to persons with disabilities and allows such persons to bring a personal assistant to the polling station.

The law tasks the Special Buildings Code Department with enforcing accessibility provisions and oversees retrofitting of existing buildings to comply with building codes. The vast majority of private and public office buildings continued to have limited or no access for persons with disabilities. Municipal infrastructure such as public transport, streets, sidewalks, and intersections was not accessible.

In the health sector, the Ministry of Health renovated four maternal and child health units to increase accessibility for persons with disabilities. The University

of Jordan installed a tactile walkway specifically designed for visually impaired, enabling greater orientation and mobility on the campus.

The PSD national 9-1-1 emergency call center provided emergency services for citizens with hearing and speech impediments by using sign language over a video call. These PSD interpreters were also available for citizens to use when discussing issues with government offices where a representative who can communicate via sign language was not present.

NGOs reported on the implementation of donor-supported programs targeted at building and refurbishing approximately 25 new public schools throughout the country to create inclusive student-centered learning spaces. These schools, serving more than 20,000 students, incorporated accessible infrastructure, furniture, and learning equipment. An NCHR report from October noted school classrooms were not fully accessible and that there were no qualified teachers for children with disabilities. Families of children with disabilities reported teachers and principals often refused to include children with disabilities in mainstream classrooms.

Human rights activists and media reported on cases of physical and sexual abuse of children and adults with disabilities in institutions, rehabilitation centers, and other care settings. The government operated some of these institutions.

The Higher Council for the Rights of Persons with Disabilities did not receive any complaints of abuses against persons with disabilities during the year.

National/Racial/Ethnic Minorities

Four groups of Palestinians resided in the country, not including the PRS covered in section 2.f., many of whom faced some discrimination. Those who migrated to the country and the Jordan-controlled West Bank after the 1948 Arab-Israeli war received full citizenship, as did those who migrated to the country after the 1967 war and held no residency entitlement in the West Bank. Those still holding residency in the West Bank after 1967 were no longer eligible to claim full citizenship, but they could obtain temporary travel documents without national identification numbers, provided they did not also carry a Palestinian Authority travel document. These individuals had access to some government services; they paid 80 percent of the rate of uninsured foreigners at hospitals and noncitizen rates at educational institutions and training centers. Refugees who fled Gaza after 1967 were not entitled to citizenship, and authorities issued them temporary travel

documents without national numbers. These persons had no access to government services and were almost completely dependent on UNRWA services.

Palestinians were underrepresented in parliament and senior positions in the government and the military, as well as in admissions to public universities. They had limited access to university scholarships. They were well represented in the private sector.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Authorities can arrest LGBTI individuals for allegedly violating public order or public decency, which are crimes under the penal code. While consensual same-sex sexual conduct among adults is not illegal, societal discrimination against LGBTI persons was prevalent, and LGBTI persons were targets of violence and abuse, including rape, with little legal recourse against perpetrators. Transgender individuals were especially vulnerable to acts of violence and sexual assault. LGBTI persons reported discrimination in housing, employment, education, and access to public services. The law does not prohibit discrimination against LGBTI individuals. LGBTI individuals reported the authorities responded appropriately to reports of crime in some cases. Other LGBTI individuals reported reluctance to engage the legal system due to fear their sexual orientation or gender identity would either provoke hostile reactions from police, disadvantage them in court, or be used to shame them or their families publicly. LGBTI community leaders reported that most LGBTI individuals were closeted and feared disclosure of their sexual orientation, gender identity, or sex characteristics. The Media Commission banned books containing LGBTI content.

During the year there were reports of individuals who left the country due to fear that their families would kill them because of their gender identity.

HIV and AIDS Social Stigma

HIV/AIDS was a largely taboo subject. Lack of public awareness remained a problem, because many citizens believed the disease exclusively affected foreigners and members of the LGBTI community. Society stigmatized HIV/AIDS-positive individuals, and they largely concealed their medical status. The government continued its efforts to inform the public about the disease and eliminate negative attitudes about persons with HIV/AIDS, but it also continued to test all foreigners annually for HIV/AIDS, as well as for hepatitis B, syphilis,

malaria, and tuberculosis. The government deported migrant workers who tested HIV-positive.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law, including related regulations and statutes, provides for the right to form and join free trade unions and conduct legal strikes, but with significant restrictions. There is no right to collective bargaining, although the labor code provides for collective agreements. The law identifies specific groups of public- and private-sector workers who may organize. It also defines 17 industries and professions in which trade unions may be established. The law requires that these 17 trade unions belong to the government-linked General Federation of Jordanian Trade Unions, the country's sole trade union federation. The establishment of new unions requires at least 50 founding members and approval from the Ministry of Labor. The law authorizes additional professions to form professional associations on a case-by-case basis. The law allows foreign workers to join unions but does not permit them to form unions or hold union office. Authorities did not permit civil servants to form or join unions or engage in collective bargaining. In 2018 an independent agricultural union attempted to register, but the government refused to review its application. No new trade union has been established since 1976. The constitution prohibits antiunion discrimination, and the law protects workers from employer retaliation due to union affiliation or activities. The law does not explicitly provide the right to reinstatement for workers fired due to antiunion views.

When conflicts arise during labor negotiations, the law requires that union representatives and employers first attempt to resolve the issue through informal mediation. If the issue remains unresolved, the union is required to submit a request for a Ministry of Labor-appointed mediator for 21 days. If the issue persists, it then goes to the minister of labor; then to a mediation council composed of an employer representative, a labor representative, and a chair appointed by the minister of labor; and, finally, to a labor court with a panel of ministry-appointed judges for 21 days. There are limits on the right to strike, including a requirement to provide a minimum of 14 days' notice to the employer. The law prohibits strikes if a labor dispute is under mediation or arbitration. The labor code prevents management from arbitrarily dismissing workers engaged in labor activism or arbitration, but NGOs reported enforcement was inconsistent due to the limited number, capacity, and resources of Ministry of Labor inspectors.

The government did not fully respect freedom of association and the right to collective bargaining. Many worker organizations were not independent of the government, and government influence on union policies and activities continued.

The government subsidized and audited salaries and activities of the General Federation of Jordanian Trade Unions and monitored union elections. The government denied recognition to independent unions organized outside the structure of the government-approved federation. The government did not meet with these unions, and the lack of legal recognition hampered their ability to collect dues, obtain meeting space, and otherwise address members' workplace concerns. Labor organizations also reported trouble getting government recognition for trade unions in new sectors beyond the 17 established in law, in part because those unions would require approval by a tripartite committee in which the existing 17 union heads are represented.

There were no reports of threats of violence against union heads, although labor activists alleged that the security services pressured union leaders to refrain from activism that challenged government interests. Strikes generally occurred without advance notice or registration.

Labor organizations reported that some management representatives used threats to intimidate striking workers.

Some foreign workers, whose residency permits are tied to work contracts, were vulnerable to retaliation by employers for participating in strikes and sit-ins. Participation in a legally unrecognized strike is counted as an unexcused absence under the law. The law allows employers to consider employment contracts void if a worker is absent more than 10 consecutive days, as long as the employer provides written notice. Labor rights organizations reported instances of refusing to renew foreign workers' contracts due to attempts to organize in the workplace.

Observers noted that the labor code did not explicitly protect nonunionized workers from retaliation. This was particularly the case for foreign workers in all sectors as well as citizens working in the public sector on short-term contracts (day laborers).

Labor NGOs working to promote the rights of workers generally focused on promoting the rights of migrant workers. Labor NGOs did not face government restrictions additional to or different from those discussed in section 2.b.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced or compulsory labor except in a state of emergency, such as war or natural disaster, or when prison sentences include hard labor. The government effectively enforced the law, although penalties were not sufficient to deter violations in all cases. Labor activists noted that law enforcement and judicial officials did not consistently identify victims or open criminal investigations.

The government inspected garment factories, a major employer of foreign labor, and investigated allegations of forced labor. Forced labor or conditions indicative of forced labor occurred, particularly among migrant workers in the domestic work and agricultural sectors. Activists highlighted the vulnerability of agricultural workers due to minimal government oversight. Activists also identified domestic workers, most of whom were foreign workers, as particularly vulnerable to exploitation due to inadequate government oversight, social norms that excused forced labor, and workers' isolation within individual homes. They further noted cases where domestic workers, who used an employers' phone to complain to a Ministry of Labor hotline, sometimes experienced retaliation when the hotline returned the call to their employer. NGOs reported the Antitrafficking Unit preferred to settle potential cases of domestic servitude through mediation, rather than referring them for criminal prosecution. High turnover at the unit also reportedly made prosecution more difficult. In January the government distributed materials to recruitment agency offices on the rights of children born to foreign workers.

Government bylaws require recruitment agencies for migrant domestic workers to provide insurance with medical and workplace accident coverage. The bylaws authorize the Ministry of Labor publicly to classify recruitment agencies based on compliance with the labor law, and to close and withdraw the license of poorly ranked agencies. As of June the ministry issued warnings to 44 recruitment agencies and transferred 106 cases of domestic helper complaints to the PSD's Antitrafficking Unit. A closure recommendation is an internal procedure in which inspectors send to the minister of labor their recommendation to close offices with multiple labor violations. Based on that recommendation, the minister may issue a closure decision.

Also see the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits all of the worst forms of child labor. The law forbids employment of children younger than 16 years old, except as apprentices in light work. The law bans those between the ages of 16 and 18 from working in hazardous occupations, limits working hours for such children to six hours per day, mandates one-hour breaks for every four consecutive working hours, and prohibits work after 8 p.m., on national or religious holidays, and on weekends.

The government effectively enforced the law. The Ministry of Labor's Child Labor Unit was responsible for coordinating government action regarding child labor in collaboration with the National Committee on Child Labor. The Child Labor Unit, with the ministry's labor inspectors, was responsible for enforcing all aspects of the labor code, including child labor. Authorities referred criminal violations to the magistrate's penalty court which handles labor cases. The law provides that employers who hire a child younger than age 16 pay a fine, which was insufficient to deter violations in all cases.

Labor inspectors reportedly monitored cases of legally working children between ages 16 and 18, to issue advice and guidance, providing safe work conditions, and cooperate with employers to permit working children to attend school concurrently. In accordance with the labor code, the ministry employed a zero-tolerance policy for labor of children younger than 16 and hazardous work for children younger than age 18.

The government's capacity to implement and enforce child labor laws was not sufficient to deter violations. The government had limited capacity to monitor children working in the informal work sector, such as children working in family businesses and the agricultural sector.

The Ministries of Labor, Education, and Social Development collaborated with NGOs seeking to withdraw children from the worst forms of labor.

Syrian refugee children worked in the informal sector without legal work permits. They sold goods in the streets, worked in the agricultural sector, and begged in urban areas. NGOs reported that when government inspections withdrew Syrian refugee children from child labor, inspectors often took the children to the Azraq refugee camp, even when their families lived in distant urban centers or Za'atari refugee camp, separating families for days or months.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings>.

d. Discrimination with Respect to Employment and Occupation

The law does not prohibit discrimination with respect to employment and occupation on the basis of race, disability, language, political opinion, national origin or citizenship, age, sexual orientation or gender identity, HIV-positive status or other communicable diseases, or social status.

Discrimination in employment and occupation occurred with respect to gender, disability, national origin, and sexual orientation (see section 6). Amendments to the labor law passed during the year prohibit discrimination in wages based solely on gender and includes labor law protections for flexible and part-time work contracts.

Union officials reported that sectors employing predominantly women, such as secretarial work, offered wages below the official minimum wage. Many women also reported traditional social pressures discouraged them from pursuing professional careers, especially after marriage. According to a Department of Statistics' survey on unemployment for the second quarter of the year, economic participation by women was 14.5 percent, and unemployment among women holding a bachelor's degree was 84.7 percent compared with the overall unemployment rate of 19.2 percent.

NGOs reported foreign workers, including garment workers and domestic workers, were especially vulnerable to gender-based violence in the workplace, including sexual harassment and sexual assault. Despite amendments during the year to the labor law, lawyers criticized the unamended Article 29 on harassment in the workplace, because it did nothing to hold perpetrators of harassment accountable and only assisted victims by allowing them to resign.

Some persons with disabilities faced discrimination in employment and access to the workplace despite the Law on the Rights of Persons with Disabilities which requires 4 percent of a workplace of more than 50 employees to employ persons with disabilities. Some migrant workers faced discrimination in wages, housing, and working conditions irrespective of the labor law (see section 7.e.).

e. Acceptable Conditions of Work

The law provides for a national minimum wage, per month, which is above the poverty line.

The law sets a workweek of 48 hours and requires overtime pay for hours worked in excess of that level. Because there was no limit on mutually agreed overtime, the Ministry of Labor reportedly permitted employees in some industries, such as the garment sector, to work as many as 70 to 75 hours per week, although observers reported many foreign workers requested overtime work.

Employees are entitled to one day off per week. The law provides for 14 days of paid sick leave and 14 days of paid annual leave per year, which increases to 21 days after five years of service with the same firm. Workers also received additional national and religious holidays designated by the government. The law permits compulsory overtime under certain circumstances such as conducting an annual inventory, closing accounts, preparing to sell goods at discounted prices, avoiding loss of goods that would otherwise be exposed to damage, and receiving special deliveries. In such cases actual working hours may not exceed 10 hours per day, the employee must be paid overtime, and the period may not last more than 30 days. There is no cap on the amount of mutually agreed overtime.

Employers are required to abide by all occupational health and safety standards set by the government. The law requires employers to protect workers from hazards caused by the nature of the job or its tools, provide any necessary protective equipment, train workers on hazards and prevention measures, provide first aid as necessitated by the job, and protect employees from explosions or fires by storing flammable materials appropriately.

The government did not effectively enforce the law. The Ministry of Labor is responsible for enforcement of labor laws and acceptable conditions of work. The number of labor inspectors was insufficient to deter violations. Labor inspectors did not regularly investigate reports of labor or other abuses of domestic workers in private homes, and inspectors could not enter a private residence without the owner's permission except with a court order. Employees may lodge complaints regarding violations of the labor code directly with the Ministry of Labor or through organizations such as their union or the NCHR. The ministry opened an investigation for each complaint.

Labor standards apply to the informal sector, but the Ministry of Labor lacked the capacity to inspect and monitor workplace violations. Authorities struggled to

apply consistently all the protections of the labor code to domestic and agricultural workers, due to the migratory nature of workers in these sectors, cultural barriers preventing direct entry into the workplace, and insufficient number of labor inspectors. Labor organizations stated that many freelancing agricultural and domestic workers, cooks, and gardeners, mostly foreign workers, were not enrolled for social benefits from the Social Security Corporation because only salaried employees were automatically enrolled, and optional enrollment was limited to citizens. Maternity leave is not consistent between the public and private sector. Domestic workers face discrimination by nationality in the wages they earn. Although the Labor Code was amended in 2008 to extend certain rights to domestic and agricultural workers, the law required that each group be covered by its own legislation. A regulation on domestic workers enacted in 2009 did not extend to them collective bargaining rights or the right to form an association. To date there is no bylaw which regulates working conditions for agricultural workers.

The government took some action to prevent violations and improve working conditions, particularly in export-oriented factories in Qualifying Industrial Zones (QIZs). The Ministry of Labor placed a special focus on enforcing compliance in the QIZs, where most migrant garment workers were employed. The ratio of labor inspectors to workers or places of employment was significantly higher in these zones than for the general population. The government required garment-export manufacturers to participate in the Better Work Jordan program, a global program implemented by the International Labor Organization and the International Finance Corporation to improve labor standards. All 77 of the foreign-exporting factories required by the government to join Better Work Jordan were active members of the program.

Wage, overtime, safety, and other standards often were not upheld. Some foreign workers faced hazardous and exploitative working conditions in a variety of sectors. Penalties were not sufficient to deter violations. Authorities did not effectively protect all employees who attempted to remove themselves from situations that endangered their health and safety. Labor organizations reported that female citizen workers were more likely to encounter labor violations, including wages below the minimum wage and harassment in the workplace.

On December 2, a fire at a dormitory in South Shouneh (Jordan Valley) killed 13 Pakistani migrant agricultural workers, according to several media sources. A local NGO reported that the dormitory where the workers were staying was built using combustible materials, which aggravated the spread of the fire. The same NGO criticized the lack of safety protections for agricultural workers under the

labor law, and reported that many dormitory houses for migrant workers were built using the same combustible materials.

In the garment sector, foreign workers were more susceptible than citizens to dangerous or unfair conditions. Better Work Jordan stated that reports of coercion decreased during the year. Indebtedness of migrant garment workers to third parties and involuntary or excessive overtime persisted. While the labor law sets the minimum wage, according to an international NGO, a substantial portion of the standard monthly minimum wage for foreign workers in the garment industry was used as an in-kind payment to employment placement services for food, accommodation, and travel for workers from their home countries.

Employers subjected some workers in the agricultural sector, the vast majority of whom were Egyptians, to exploitative conditions. According to a domestic NGO, agricultural workers usually received less than the minimum wage. Some employers in the agricultural sector also reportedly confiscated passports. Egyptian migrant workers were also vulnerable to exploitation in the construction industry; employers usually paid them less than the minimum wage, and they lacked basic training and equipment necessary to uphold occupational health and safety standards.

Domestic workers often faced unacceptable working conditions. While domestic workers could file complaints in person with the Ministry of Labor's Domestic Workers Directorate or the PSD, many domestic workers complained there was no follow-up on their cases. The Antitrafficking Unit at the PSD operates a 24-hour hotline, with operators available in all languages spoken by migrant domestic workers in the country, including Tagalog, Bengali, and Tamil.

Advocates for migrant domestic workers reported that domestic workers who sought government assistance or made allegations against their employers frequently faced counterclaims of criminal behavior from their employers. Employers could file criminal complaints or flight notifications against domestic workers with police stations. Authorities waived immigration overstay fines for workers deported for criminal allegations or expired work permits. During the year dozens of domestic workers from the Philippines, Indonesia, and Sri Lanka sought shelter at their countries' embassies in Amman. Most of the domestic workers reportedly fled conditions indicative of forced labor or abuse, including unpaid wages and, to a lesser extent, sexual or physical abuse. By law employers are responsible for renewing foreign employees' residency and work permits but often failed to do so for domestic employees. As a result authorities considered

most of the domestic workers sheltered by embassies illegal residents, and many were stranded because they were unable to pay accumulating daily overstay fees to depart the country. The government continued its cooperation with foreign embassies to waive overstay fees for migrant domestic workers who wished to repatriate after a two-year stay in the country, a policy that greatly reduced the number of domestic workers stranded at their embassies' shelters.